Temporary

3928

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An Act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the Amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, and all other amendments thereto, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination and order:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, Nine Thousand Nine Hundred and Twenty (9,920) shares of the common stock of the Roessler & Hasslacher Chemical Company, a corporation of the state of New York, and Two Thousand Two Hundred (2,200) shares of the common stock of the Niagara Electro Chemical Company, formerly belonging to the Deutsche Gold und Silber Scheidenanstalt Vormals Roessler, a subsidiary corporation of said Roessler & Hasslacher Chemical Company, also Four Thousand Nine Hundred (4,900) shares of the common stock of the Perth Amboy Chemical Works, formerly belonging to the Holzverkolungs-Industrie Aktiengesellschaft, also a subsidiary corporation of said Roessler & Hasslacher Chemical Company, at a price of Seventy ($70.00) Dollars per share for each and every share of the said stock of said Companies, as above enumerated, which said shares were heretofore seized by the Alien Property Custodian under the provisions of said Act.

My reasons for the foregoing determination and order are:

(a) That property such as that herein described cannot usually be sold to advantage at public sale after public or other advertisement.

(b) That an advantageous offer for the purchase of said shares of stock has been received by the Alien Property Custodian.

(c) That the way and manner in which the said stock is held and controlled, making financing of the business difficult; the difficulty of making fresh developments along technical lines; improved methods of manufacture and new processes controlled or owned by competitors, having resulted in a depreciation of the value of the different plants and of said stock, which conditions will in all probability, continue, it appears to be for the best interests of all concerned that said stock be now sold, in accordance with the terms of this Order.

CALVIN COOLIDGE

THE WHITE HOUSE,
November 22, 1923.

[No. 3928.]

GOVERNMENT PRINTING OFFICE